

Ramesh Chandra v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 13 February 2020 · Writ-C No. 5078 of 2020 · Writ-C No. 5078 of 2020 · **Writ disposed of; petitioner relegated to Clause 6.5 with time-bound consideration and 40-day protection against coercive action on the demand notice.**

HEADNOTE

A writ challenging an electricity demand notice and bill, and seeking correction of the bill by surplus adjustment, was not entertained because a dispute as to correctness of the bill lies under Clause 6.5 of the U.P. Electricity Supply Code, 2005. The petition was disposed of with liberty to approach the appropriate authority within two weeks, a direction to decide within 30 days by a speaking order after hearing, and 40-day protection from coercive action on the 25 July 2019 demand, ceasing if the petitioner did not approach in time.

FACTUAL SUMMARY

Ramesh Chandra filed a writ in the Allahabad High Court seeking certiorari to quash a demand notice dated 25 July 2019 and an electric bill dated 7 December 2019, and mandamus directing the electricity authorities to correct the bill by adjusting a surplus amount he claimed to have paid up to 2014. Counsel for the petitioner and the Electricity Department were heard. The petition raised a dispute as to the correctness of the bill.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-dispute-alternate-remedy

HOLDING

A writ petition raising a dispute as to the correctness of an electricity bill and demand notice is not to be entertained when Clause 6.5 of the U.P. Electricity Supply Code, 2005 furnishes a statutory remedy; the consumer may approach the appropriate authority, which is to decide the application in accordance with law by a speaking order after hearing, and limited protection against coercive recovery may accompany that relegation. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy The Court declined to entertain the writ because Clause 6.5 was an available statutory remedy for the billing dispute, and disposed of the petition with liberty to approach the appropriate authority. ¶ 1

clause-6.5-statutory-remedy-disputed-bill The petitioner's challenge was confined to correctness of the demand notice dated 25.07.2019 and bill dated 07.12.2019; that dispute was sent to the Clause 6.5 remedy rather than decided on the writ. ¶ 1

6.5-representation-as-appropriate-remedy The Court treated a representation to the appropriate authority under Clause 6.5 as the proper forum, directing consideration within 30 days by a speaking order if approached within two weeks. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DEMAND NOTICE DATED 25.07.2019 AND ELECTRIC BILL DATED 07.12.2019, AND THE CLAIM TO ADJUST SURPLUS PAYMENTS UP TO 2014

Left to the appropriate authority under Clause 6.5; the Court expressed no view on the merits of the bill. ¶ 1